

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

RESPONDENTS' REPLY STATEMENT OF MATERIAL FACTS
TO WHICH THERE IS NO GENUINE DISPUTE

Respondents Amazon.com Services LLC (“Amazon”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”) respectfully submit this Reply Statement of Material Undisputed Facts in support of Respondents’ Reply to Complainant’s Opposition to the motion for summary disposition dated September 9, 2026.

I. The Parties’ Contractual Relationship and the Publicity Provisions

1. Amazon and China United (the “Parties”) entered into a transportation agreement in April 2022 consisting of the Amazon Global Logistics Main Transportation Agreement (“MTA”), the Nondisclosure Agreement (“NDA”), and a Work Order. *See* Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).¹

¹ Pursuant to Dkt. No. 5, Presiding Officer’s Initial Order (Jan. 23, 2025), evidence relied upon that has previously been provided by either party is cited rather than included in the appendix as a differently numbered copy of the same evidence.

Response: Admit that the Parties entered into the MTA, NDA, and Work Order. The transportation agreement is a service contract under FMC rules. *See* Verified Am. Complaint, Dkt. No. 11. As such, the service contract had a two-year term with volume and liquidated damages provisions subject to FMC regulations.

Respondents' Reply: As to the material China United adds to its admission of the stated fact, Respondents agree that the MTA and Work Order are a service contract and note that the contract was subject to termination before its term as provided therein.

2. Section 7(2) of the MTA provides that China United “will not use Amazon’s trade name, trademark, service mark, logo, commercial symbol, or any other proprietary rights without Amazon’s prior written consent.” *See* Main Transportation Agreement, Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit insofar as Section 7(2) contains the quoted language. Deny any intended interpretation that Section 7(2) operates as a standalone bar on use of Amazon’s name divorced from the confidentiality context in which it appears. Section 7(2) sits within Section 7 of the MTA, which is headed “Confidentiality” in bold. Main Transportation Agreement, Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025) § 7. It appears directly below Section 7(1), which incorporates the NDA by reference and provides that “Confidential Information” bears the same meaning as in the NDA. *Id.* § 7(1). The NDA defines “Confidential Information” to mean “any nonpublic information relating to Amazon that is designated as confidential or that, given the nature of the information or the circumstances surrounding its disclosure, reasonably should be considered as confidential.” Nondisclosure Agreement, Attach. B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025) § 1. The NDA specifically excludes

public information from its definition of “Confidential Information.” *Id.* §§1–2. CUL’s corporate representative Yew Ping Teo testified that both the NDA and the MTA describe requirements tied to confidentiality, and that the prohibition on use of Amazon’s name was understood by CUL to apply only insofar as the information remained confidential: “[B]oth says confidential, and [the Amazon-CUL relationship] was no longer confidential after the 4th of July posting.” RX 346, Teo Dep. 47:13–17; *see also* RX 355-56 Cardadeiro Dep. Tr. 13:2-14:2.

Respondents’ Reply: China United adds material to its admission, including its erroneous legal assertion that the “Confidentiality” heading limits Section 7(2) to nonpublic information. Section 7(2) is a standalone prohibition on China United’s use of Amazon’s proprietary rights without prior written consent and contains no reference to confidentiality or to public/nonpublic status. None of this added material raises a genuine issue of material fact as to an essential statutory element of China United’s Shipping Act claim. *See, e.g., Int’l Ass’n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) (“It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.”).

3. Section 7(1) of the MTA incorporates the NDA. *Id.*

Response: Admit.

Respondents’ Reply: No reply necessary.

4. Section 6 of the NDA prohibits China United from using “any trade name, trademark, logo or any other proprietary rights of Amazon (or any of its Affiliates) in any manner without prior written authorization of such use by a Vice President of Amazon (or its applicable Affiliate).” *See* Nondisclosure Agreement, Attach. B to Dkt. No. 13, Resp. Motion to

Dismiss (Confidential) (March 26, 2025). Section 7(2) of the MTA and the similar provision in Section 6 of the NDA are referred to herein as the “Publicity Provisions.”

Response: Admit insofar as Section 6 of the NDA contains the quoted language. Deny any intended inference that the prohibitions in Section 6 apply to non-confidential information, including information publicized by Amazon, first. Indeed, Section 6 of the NDA is entitled “Ownership of Confidential Information.” Attach. B to Dkt. No. 13 § 6 (emphasis added). Section 1 of the NDA defines “Confidential Information” to mean “any nonpublic information relating to Amazon that is designated as confidential or that, given the nature of the information or the circumstances surrounding its disclosure, reasonably should be considered as confidential.” *Id.* § 1 (emphasis added). The NDA specifically excludes public information from its definition of “Confidential Information.” *Id.* §§1–2. Section 7(2) of the MTA and the similar provision in Section 6 of the NDA are referred to herein collectively as the “Confidentiality Provisions.” Further deny that Section 6 of the NDA constitutes a “publicity” provision, as that characterization is unsupported by the plain text of the agreement. Neither the term “publicity” nor any similar language appears in Section 6 or its heading.

Respondents’ Reply: China United adds material to its admission, including its erroneous legal characterization of Section 6 of the NDA and Section 7(2) of the MTA as “Confidentiality Provisions.” None of this added material raises a genuine issue of material fact as to an essential statutory element of China United’s Shipping Act claim. *See, e.g., Int’l Ass’n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) (“It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.”).

5. Neither the MTA nor the NDA required Amazon to obtain China United's consent before referring publicly to China United or using China United's name. *See* Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit that the MTA and NDA restrict CUL's use of Amazon's name only. Deny any intended inference that this asymmetry transforms the Confidentiality Provisions into freestanding proprietary-rights clauses separated from their "Confidentiality" context. Section 7(2) of the MTA sits within Section 7, which is headed "Confidentiality" and which, in Section 7(1), incorporates the NDA and defines "Confidential Information" to mean "any nonpublic information relating to Amazon." Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025). Section 6 of the NDA likewise only addresses Amazon's "Ownership of Confidential Information." Attach. B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025). The asymmetry does not reflect a decision to create a standalone publicity prohibition untethered from the confidentiality framework.

Respondents' Reply: China United adds material to its admission, including its erroneous legal characterization of the referenced sections as confidentiality provisions. None of this added material raises a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. *See, e.g., Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

6. During contract performance, China United was aware of the Publicity Provisions and the restrictions they imposed on China United's use of Amazon's name. *See* APP 89-92, 97-99, 100-103, Teo Dep. Tr. at 14:21-15:6, 27:8-28:4, 36:15-39:23.

Response: Admit that CUL understood its contractual obligations regarding use of Amazon's name where the relationship remained nonpublic. Deny the broad scope implied. CUL's corporate representative, Yew Ping Teo, testified that once Amazon publicly disclosed the Parties' relationship on July 4, 2022, the relationship was "no longer confidential." RX 346, Teo Dep. 47:13-17. CUL's Raymond Chen confirmed the same understanding: he believed Article 7 of the MTA related to "confidentiality," as stated in the title, and that the confidentiality premise was removed once Amazon posted publicly about the relationship. RX 25, Chen Decl. ¶ 37. Furthermore, deny that Section 6 or 7 of the NDA constitutes a "publicity" provision, as that characterization is unsupported by the plain text of the provision. The word "publicity" does not appear in Sections 6 or 7 of the NDA, or its heading.

Respondents' Reply: China United adds material to its admission, including its erroneous legal characterization of the Publicity Provisions as "Confidentiality Provisions" that became unenforceable once China United deemed certain information public. None of this added material raises a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. *See, e.g., Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

7. On April 19, 2022, China United requested permission to use Amazon's name in a press release, ceremony, website materials, and public media accounts. *See* APP 63-66, Bates Nos. AMZ-00000174-AMZ-00000176; APP 97-99, Teo Dep. Tr. at 27:8-29:21.

Response: Admit that CUL sought permission for a public press release or social media post mentioning Amazon on April 19, 2022 and that Amazon denied that request. Deny any intended inference that Amazon's April 2022 denial was grounded in or invoked the Confidentiality Provisions; Amazon's response did not cite Section 7(2), the MTA, or the NDA as the basis for its denial. RX 61, Liu Decl. ¶ 38; APP 63-66. Further deny that this pre-disclosure denial is relevant to CUL's conduct after Amazon's July 4, 2022 WeChat post, which publicly disclosed the relationship and eliminated the confidentiality premise on which the consent requirement is predicated. RX 26, Chen Decl. ¶ 40; RX 346, Teo Dep. 47:13–17.

Respondents' Reply: China United adds material to its admission, including its erroneous legal assertions that (1) Amazon's withholding of consent was ineffective because Amazon failed to cite a specific Publicity Provision, and (2) the Publicity Provisions became unenforceable once China United deemed certain information public. None of this added material raises a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. *See, e.g., Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

8. Amazon denied China United's April 19, 2022 request to use Amazon's name. *Id.*

Response: Admit that Amazon denied CUL's April 2022 request. Deny any intended inference that Amazon's denial was grounded in or invoked Section 7(2) of the MTA or the

NDA. Amazon said nothing about the MTA or the NDA in its response. RX 61, Liu Decl. ¶ 38; APP 63-66. CUL understood Amazon's response as reflecting Amazon's wish for confidentiality regarding the relationship — a premise Amazon itself eliminated less than three months later by publicly posting about CUL on its own WeChat account on July 4, 2022. RX 25-26, Chen Decl. ¶¶ 38, 40; RX 70-91; Ex. X, RX 346, Teo Dep. 47:13–17.

Respondents' Reply: China United adds material to its admission, including its erroneous legal assertions that (1) Amazon's withholding of consent was ineffective because Amazon failed to cite a specific Publicity Provision, and (2) China United's subjective understanding of the request controls its contractual obligations. None of this added material raises a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. *See, e.g., Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

9. In July 2022, China United requested permission to identify Amazon in an IPO prospectus. *See* APP 67-70, Bates Nos. AMZ-00002642-AMZ-00002644.

Response: Admit that CUL sought Amazon's consent to include a reference to Amazon in its IPO prospectus in July 2022. Deny any intended inference that this request reflects CUL's understanding of Section 7(2) as a freestanding, non-confidentiality-based restriction. The July 2022 IPO request was made at the direction of CUL's outside lawyers at Baker McKenzie, who asked CUL to seek consent from a number of its principal clients as a matter of standard IPO diligence practice — not because CUL believed the confidentiality obligation remained operative after Amazon's July 4, 2022 public post. RX 61-62, Liu Decl. ¶¶ 41, 43; RX 26, Chen Decl. ¶ 39; APP 67-70.

Respondents’ Reply: China United adds material to its admission, including its commentary regarding the intent underlying its consent request. The contract’s requirements are determinable as a matter of law, and none of this added material raises a genuine issue of material fact as to an essential statutory element of China United’s Shipping Act claim. *See, e.g., Int’l Ass’n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) (“It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.”).

10. Amazon denied China United’s July 2022 request to use Amazon’s name. *Id.*

Response: Admit that Amazon denied CUL’s July 2022 request to include a reference to Amazon in its IPO prospectus. Deny any intended inference that this request reflects CUL’s understanding that Section 7(2) of the MTA or Section 6 of the NDA prohibited CUL from referencing Amazon after Amazon had already publicly disclosed the Parties’ relationship. The July 2022 IPO request was made at the direction of CUL’s outside lawyers at Baker McKenzie, who asked CUL to seek consent from a number of its principal clients as a matter of standard IPO diligence practice — not because CUL believed the confidentiality obligation remained operative after Amazon’s July 4, 2022 public post. RX 61-62, Liu Decl. ¶¶ 41, 43; RX 26, Chen Decl. ¶ 39; APP 67-70. Moreover, Amazon’s response did not cite the MTA or the NDA as the basis for its denial but instead stated only that Amazon preferred to remain anonymous. RX 61-62, Liu Decl. ¶ 41; APP 67-70.

Respondents’ Reply: China United adds material to its admission, including its commentary regarding the intent underlying its request. China United does not dispute that Amazon denied China United’s July 2022 request to use its name, and the contract’s requirements are determinable as a matter of law. None of this added material raises a

genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. *See, e.g., Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

11. From August 2022 through March 2023, without Amazon's approval, China United used Amazon's trade name across multiple public platforms on multiple occasions without written authorization from or notice to Amazon. *See* APP 106-110, 112-114, Transcript of Yew Ping Teo Deposition ("Teo Dep. Tr.") at 43:15-18, 45:20-24, 51:6-20, 52:22-53:21, 55:1-56:18, 57:2-8.

Response: Admit that, after Amazon publicly disclosed the Parties' relationship on its official WeChat account on July 4, 2022, CUL referenced Amazon in various publications. Deny that CUL's references to Amazon exceeded the scope of information that Amazon had already publicly disclosed regarding the Parties' relationship. Amazon's July 4, 2022 WeChat post publicly identified CUL as Amazon's route-capacity provider, promoted a "CULines promotion period," published CUL sailing schedules and rates, touted the advantages of using CUL's service, and discussed CUL's schedule reliability and service performance. RX 26, Chen Decl. ¶ 40; RX 70-91. CUL's subsequent references to Amazon merely reposted, summarized, or recast information that Amazon had already placed into the public domain. RX 28, Chen Decl. ¶¶ 46-49; RX 70-129, RX 190-215. As Raymond Chen testified, CUL "merely repost[ed] what Amazon had already posted" and, while CUL may have "summarized" or "simplified" Amazon's statements, "at no time" did CUL "actually exceed the content that was posted by Amazon." RX 349, Trial Tr. 88:6-10. Mr. Chen further testified that he instructed CUL personnel that any publication concerning

Amazon could not exceed “the content that was on July 4” and that CUL could not publish “anything exceeding what’s already been published by Amazon on July 4.” RX 349, Trial Tr. 88:9-10. Deny further that Amazon lacked awareness of CUL’s references. Amazon personnel followed CUL’s WeChat account, CUL’s publications remained publicly available, and Amazon never took issue with CUL’s reference to Amazon, prior to invoking the issue in connection with its effort to avoid its freight payment obligations. RX 238, Liao Dep. 20:9-17; RX 243, Wu Dep. 16:20-25; RX 28-29, Chen Decl. ¶¶ 46-49. In addition, Amazon explicitly blessed CUL’s usage of the Amazon name in October 2022. RX 229-35; RX 258-59.

Respondents’ Reply: China United adds material to its admission, including its erroneous legal assertions that (1) the Publicity Provisions became unenforceable once China United deemed certain information public, (2) Amazon consented to China United’s public use of the Amazon name, and (3) Amazon was aware of the challenged publications when China United published them. As to the first, that is a legal question being litigated in the Southern District of New York. As to the second, China United never sought or received Amazon’s prior written consent for any of the publications at issue; there is no evidence in the record that Amazon consented to any of these publications, and after-the-fact praise of a banner already displayed cannot constitute the prior written consent the contract requires. As to the third, China United identifies no evidence that Amazon knew of the specific publications at issue at the time they were made. None of these added legal assertions raise a genuine issue of material fact as to an essential statutory element of China United’s Shipping Act claim.

12. In September 2022, after China United had already published articles promoting its relationship with Amazon without Amazon's permission, China United requested consent to disclose its relationship with Amazon to China International Capital Corporation, a third party, to perform a due-diligence interview with China United's financial advisor for its upcoming IPO. *See* APP 72-75, Bates Nos. CUL003113-CUL003116.

Response: Admit that CUL sought Amazon's participation in an interview with CUL's pre-IPO auditor in September 2022. Admit that Amazon agreed to disclose the existence of the Amazon-CUL relationship to a third-party auditor conducting due diligence in connection with CUL's proposed IPO, the same relationship that Amazon now contends CUL could not disclose without risking immediate termination for cause. RX 290-92, Cardadeiro Dep. 13:22-14:2, 20:20-25; APP 72-75. Deny any intended inference that CUL's request reflects an acknowledgment that Section 7(2) of the MTA or Section 6 of the NDA prohibited CUL from using Amazon's name after Amazon had already publicly disclosed the Parties' relationship. The request was made because CUL's auditor sought third-party confirmation of the business relationship as part of a routine due-diligence process, not because CUL believed the existence of the Amazon-CUL relationship remained confidential after Amazon's July 4, 2022 public disclosure. RX 62, Liu Decl. ¶ 42; RX 70-91. Amazon's willingness to confirm the existence of the relationship to an independent third party is consistent with CUL's understanding that the relationship itself was no longer confidential information. RX 62, Liu Decl. ¶¶ 42-43; RX 26-27, Chen Decl. ¶ 40; RX 70-91; APP 72-75.

Respondents' Reply: China United adds material to its admission, including its erroneous legal assertions that (1) the Publicity Provisions became unenforceable once China United

deemed certain information public, and (2) Amazon's authorization to provide limited confirmation for an internal due-diligence process constituted unlimited consent to public use of Amazon's name. None of this added material raises a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim.

13. Amazon declined to provide information regarding its pricing or business practices but agreed to provide limited confirmation, for use in an internal due-diligence process and not publicly, that China United was a business partner of Amazon. *Id.*

Response: Admit that Amazon declined to provide information regarding its pricing and business practices. Admit that Amazon agreed to confirm the existence of the Amazon-CUL business relationship in connection with due diligence being conducted for CUL's proposed IPO. Deny any implication that the due-diligence process was merely "internal." The due diligence involved communications between Amazon and an independent third-party auditor conducting diligence in connection with CUL's IPO. APP 72-75. Amazon's willingness to confirm the relationship to an independent third party is inconsistent with its present contention that identifying the same relationship constituted grounds for immediate termination for cause. RX 290-92, Cardadeiro Dep. 13:22-14:2, 20:20-25. Deny further any implication that Amazon's response reflected a belief that the existence of the Parties' relationship remained confidential following Amazon's July 4, 2022 public disclosure of that relationship. While Amazon declined to disclose sensitive information regarding its pricing and business practices, it nevertheless agreed to confirm to a third-party auditor the very information Amazon had already publicly disclosed on its own WeChat platform: that CUL was an Amazon business partner. RX 70-91. Amazon's willingness to confirm that information to an independent third party is consistent with CUL's understanding that the

existence of the relationship was no longer confidential information after Amazon's July 4 publication. RX 26, Chen Decl. ¶ 40.

Respondents' Reply: China United admits the stated fact but quibbles with the word "internal." The disclosure was not public; it was internal to the due-diligence process for China United's proposed IPO. China United's further erroneous legal assertion that the Publicity Provisions became unenforceable once China United deemed certain information public does not raise a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim.

II. Termination of the Parties' Agreement

14. On April 1, 2023, Amazon provided notice that it was electing to terminate the Work Order for convenience following the contractually required 90-day notice period. *See* APP 77, Bates No. AMZ-00002089.

Response: Admit.

Respondents' Reply: No reply necessary.

15. Had the termination for convenience taken effect, the Work Order's liquidated damages provisions would have been triggered. *See* Work Order, Attach. C to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit that, had Amazon's termination for convenience taken effect, the Work Order's Early Termination Tender Shortfall liquidated damages provision would have been triggered. Deny any intended inference that all types of liquidated damages were available only upon the effectiveness of a termination-for-convenience notice. The Work Order contains separate liquidated damages provisions appearing in different subdivisions of Schedule 3 and triggered by different events. Compare Schedule 3 § 5(1) with Schedule 3

§ 5(4), Work Order, Attach. C to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (Mar. 26, 2025). While Early Termination Tender Shortfall damage arises when Amazon terminates the Work Order for convenience pursuant to Schedule 3 § 5(4)(c), the Work Order separately provides for Tender Shortfall Liquidated Damages based upon Amazon's failure to meet or exceed its MQC. See id. § 5(1)(b). Indeed, only the Early Termination Tender Shortfall provision is expressly limited to circumstances where Amazon "terminates this Work Order for convenience pursuant to Section 5(2) of the Agreement." Id. § 5(4)(c)(i). By contrast, the Tender Shortfall Liquidated Damages provisions contain no such requirement. See id. § 5(1). The Work Order further provides that Tender Shortfall Liquidated Damages constitute Amazon's "sole liability and entire obligation" and CUL's "exclusive remedy" for Amazon's failure to meet or exceed the MQC. Id. § 5(1)(d).

Respondents' Reply: China United adds material to its admission, including its legal assertions as to other liquidated damages provisions that might operate independently of a convenience termination. Those assertions are not relevant to this proceeding and, as legal assertions, do not raise a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. See, e.g., *Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

16. Amazon continued to pay contract rates above market rates and China United's tariff rates after giving notice and until shipments under the contract ceased. See APP 153-154, St. Amand Expert Report at ¶¶ e-n; APP 189, McCown Expert Rebuttal Report at ¶ 5.

Response: Admit that Amazon paid the rates required by the Service Contract after providing its notice of termination for convenience and until shipments under the Service Contract ceased. Deny the characterization that rates were above market rates. As explained by CUL's expert, the Service Contract was negotiated near the peak of an extraordinarily volatile Trans-Pacific freight market, and market rates declined substantially during the Parties' relationship. RX 494-502, St. Amand Expert Report ¶¶ 32-45.

Respondents' Reply: China United admits that Amazon paid the contract rates required until shipments ceased. China United's own expert confirmed that contract rates exceeded market rates for essentially the entire life of the contract, often by thousands of dollars per TEU, and exceeded the applicable tariff rates for every period in which China United had an effective published tariff stating container rates for the relevant port pair. APP 161, St. Amand Rep. Fig. 6; APP 173-176, St. Amand Dep. 96:12-99:8. China United's response, though framed as a denial, does not deny that Amazon continued to pay contract rates above market rates and China United's tariff rates after giving notice and until shipments under the contract ceased.

17. Amazon discovered that China United had breached Section 7(2) of the MTA prohibiting use of Amazon's name without prior written consent. *See* APP 79-82, Bates No. AMZ-00002218-AMZ-00002221.

Response: Deny to the extent Amazon seeks to imply that the referenced document establishes when Amazon first became aware of CUL's public references to Amazon. The document cited by Amazon does not establish that proposition. *See* APP 79-82. Amazon witnesses testified that Amazon employees followed CUL's WeChat account from the outset of the Parties' relationship. RX 238, Liao Dep. 20:9-17; RX 243, Wu Dep. 16:20-

25. Amazon's Jesse Wu further testified that CUL's WeChat post was easy to find and could be located through simple keyword searches on Google or WeChat, in either English or Chinese. RX 244, Wu Dep. 18:20-19:1. Amazon's contemporaneous awareness of CUL's use of the Amazon name is further reflected by communications sent directly to Amazon executives regarding CUL's October 2022 TraPac event banner, which explicitly referenced the Amazon name, and to which Amazon responded with praise. RX 229-35, 258-59. The undisputed evidence therefore establishes that Amazon was aware of CUL's use of the Amazon name well before April 2023.

Respondents' Reply: China United identifies no evidence that Amazon knew of China United's unauthorized public use of Amazon's name before April 18, 2023. The unrebutted deposition record China United itself developed confirms that discovery date. *See* SUPP. APP 12-13, Cardadeiro Dep. 129:20–130:14; SUPP. APP 16-17, Klosky Dep. 174:24–175:6. In any event, when Amazon discovered the breach does not raise a genuine issue of material fact as to whether section 41102(a) was violated because non-enforcement or delayed enforcement of a contractual right is not fraud, deceit, or concealment.

18. The Parties' agreement provided that unauthorized use of Amazon's name constituted grounds for termination for cause. *See* Main Transportation Agreement § 1.5.(3), Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit that the MTA provides that a material breach of Section 7(2) may constitute grounds for immediate termination for cause. Attach. A to Dkt. No. 13 § 1.5(3). Deny, however, that CUL violated Section 7(2). Section 7(2) appears within Section 7 of the MTA, entitled "Confidentiality," and incorporates the Parties' NDA as part of the same confidentiality framework. Attach. A to Dkt. No. 13 § 7; Attach. B to Dkt. No. 13. As

explained above, CUL did not disclose confidential information, and Amazon's contention that CUL violated Section 7(2) improperly treats that provision as a standalone publicity restriction divorced from the confidentiality provisions in which it appears.

Respondents' Reply: China United adds material to its admission, including its erroneous legal assertion that the Publicity Provisions became unenforceable once China United deemed certain information public. That contract question is being litigated in the Southern District of New York, and none of this added material raises a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. *See, e.g., Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

19. Amazon commenced a due diligence investigation into the events underlying the potential termination for cause. *See* APP 131-134, Transcript of David Cardadeiro Deposition at 127:2-130:14.

Response: Deny. Amazon has withheld all internal communications and investigative materials that would reveal the actual timeline and substance of its investigation into CUL's use of Amazon's name. RX 361-78 (Amazon's Privilege Log) (identifying, among other entries, AMZ-00002233, an April 21, 2023 email thread titled "RE: Privileged and Confidential: CU Lines Marketing Using Amazon Name"; AMZ-00002510-AMZ-00002511, a June 5, 2023 email thread bearing the same title; and AMZ-00002810-AMZ-00002813, an April 20, 2023 email thread titled "FW: Privileged and Confidential: CU Lines Marketing Using Amazon Name"). Amazon cannot establish the nature, scope, or timing of that investigation through a selectively presented account while shielding the

underlying investigative record behind assertions of privilege. *Id.* Amazon witnesses’ testimony that Amazon employees followed CUL’s WeChat account from the outset of the Parties’ relationship further undermines Amazon’s account. RX 238, Liao Dep. 20:9-17; RX 243, Wu Dep. 16:20-25. Amazon cannot simultaneously withhold the investigative record on privilege grounds and rely on self-serving characterizations of that investigation to support its motion.

Respondents’ Reply: China United developed the non-privileged record of Amazon’s evaluation of the breach, which the privilege log shows occurred between April 18 and June 7, 2023, and China United admits occurred between at least April 20 and June 5, 2023, through six depositions, and that record independently confirms it. *See, e.g.*, SUPP. APP 12-13, Cardadeiro Dep. 129:20–130:14 (“about six, seven weeks”); SUPP. APP 16-17, Klosky Dep. 174:24–175:6, 181:7–15. China United cannot manufacture a factual dispute by pointing to withheld documents whose substance Amazon has never affirmatively deployed, and by attempting to relitigate a privilege motion it has already lost. *See HSH Nordbank AG N.Y. Branch v. Swerdlow*, 259 F.R.D. 64, 74 n.14 (S.D.N.Y. 2009). The length and nature of the investigation are not material facts in any event as Amazon was under no obligation under section 41102(a) or otherwise to undertake or complete the investigation in any particular manner or within any particular timeframe.

20. On June 7, 2023, Amazon issued a superseding notice terminating the Parties’ agreement for cause, effective immediately. *See* APP 84-86, Bates No. AMZ-00000495-AMZ-00000497.

Response: Admit that Amazon issued a notice purporting to terminate the Parties’ agreement for cause on June 7, 2023. Deny that the June 7, 2023 notice validly superseded

Amazon's earlier notice of termination for convenience or properly eliminated CUL's entitlement to freight payments for early termination of the Service Contract. Amazon issued the for-cause notice only after CUL refused Amazon's repeated efforts to reduce the liquidated damages owed as a consequence of Amazon's earlier election to terminate for convenience. RX 30, Chen Decl. ¶¶ 53-54. Amazon's own documents further reflect consideration of whether to "lean in to [CUL's] disclosure point to create leverage." RX 265. David Cardadeiro likewise testified that the June 7, 2023 termination letter "probably" would not have been sent had CUL agreed to reduce the liquidated damages. RX 360, Cardadeiro Dep. 126:6-14. Furthermore, CUL acted in reliance on the Notice of Termination for Convenience and Amazon elected its remedy by terminating the relationship for convenience. RX 30-31, Chen Decl. ¶ 30. The June 7, 2023 notice was therefore not a proper superseding termination, but rather a belated effort to escape the financial consequences of Amazon's prior termination-for-convenience election.

Respondents' Reply: China United adds material to its admission, including its erroneous legal arguments as to the effect and validity of the termination, which are being litigated in the Southern District of New York. None of this added material raises a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim. *See, e.g., Int'l Ass'n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) ("It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.").

21. The first shipment under the Parties' agreement occurred on May 20, 2022. *See* APP 156, St. Amand Expert Report at ¶ 21.

Response: Admit.

Respondents' Reply: No reply necessary.

22. The final shipment under the Parties' agreement occurred on June 19, 2023. *Id.*

Response: Admit.

Respondents' Reply: No reply necessary.

23. At no point during the period of May 20, 2022 to June 19, 2023 did Amazon engage in any activity of false billing, false classification, false weighing, false reporting of weight, false measurement, or any similar unjust or unfair device or means. *See* APP 53-54, Dkt. No. 80, Complainant's July 10, 2026 Interrog. Resp., at 2-3.

Response: Deny. This statement is a legal conclusion rather than a statement of fact and is therefore not properly included in a statement of undisputed material fact. To the extent a response is required, CUL further denies the statement because Amazon engaged in an unjust and unfair device by affirmatively endorsing and encouraging CUL's use of the Amazon name while the Parties' commercial relationship remained favorable to Amazon, only to later characterize that same conduct as a material breach when Amazon sought to avoid the Freight Payments triggered by its decision to terminate the Service Contract early. RX 381-82, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3. Amazon praised and approved conduct that it later claimed justified a for-cause termination, continued accepting the benefits of the Service Contract, sought concessions from CUL regarding the Freight Payments, and ultimately attempted to use CUL's use of the Amazon name as both leverage and a purported basis to avoid its Service Contract obligations. *Id.*; RX 229-235; RX 258-59; RX 265. Amazon engaged in deceit and fraud, not only blessing the usage of its name and keeping silent as to avoid its

freight-payment obligations — conduct constituting an unjust and unfair device under 46 U.S.C. § 41102(a).

Respondents’ Reply: China United’s response confirms the fact: China United does not contend that Amazon engaged in false billing, false classification, false weighing, false reporting of weight, or false measurement, and instead rests its section 41102(a) theory on Amazon’s exercise of contractual termination rights. China United’s additional commentary is a legal position that does not raise a genuine issue of material fact as to an essential statutory element of China United’s Shipping Act claim. *See, e.g., Int’l Ass’n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976) (“It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.”).

III. China United’s Fraud or Concealment Allegations

24. China United contends that Amazon’s “inaction/silence” regarding China United’s use of Amazon’s name, coupled with Amazon’s subsequent termination of the agreement for cause, constitutes concealment. *See* APP 53-54, Dkt. No. 80, Complainant’s July 10, 2026 Interrog. Resp., at 2-3.

Response: Deny. This statement mischaracterizes CUL’s position and, in any event, constitutes a legal conclusion rather than a statement of fact. To the extent a response is required, CUL denies the reductive characterization of its allegations. CUL’s contention is not based merely on Amazon’s inaction or silence. Rather, CUL contends that Amazon engaged in fraud and deceit by affirmatively endorsing and praising CUL’s use of the Amazon name while the Parties’ commercial relationship remained advantageous to Amazon, only to later characterize that same conduct as a material breach when Amazon

sought to avoid the Freight Payments triggered by its decision to terminate the Service Contract early. RX 381-82, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3. Amazon publicly promoted the Amazon-CUL relationship and expressed written approval of CUL's use of the Amazon name, continued accepting the benefits of lower freight rates under the Service Contract, sought concessions regarding Early Termination Freight Payments, and ultimately wielded the same conduct it had previously endorsed as leverage and as a purported basis for a termination for cause as a means to avoid payment of its MQC shortfall obligations owing under the Service Contract. *Id.*; RX 229-235; RX 258-59; RX 265. In addition, the undisputed testimony of Amazon's own employees — who followed CUL's WeChat account from April 2022 — establishes that Amazon was aware of CUL's name usage online, but turned a blind eye to that name usage throughout the relevant period and took no action. RX 238, Liao Dep. 20:9-17; RX 243, Wu Dep. 16:20-25.

Respondents' Reply: Whatever labels China United now attaches to its theory, its response confirms the fact: China United's section 41102(a) claim rests on Amazon's conduct with respect to China United's use of Amazon's name and Amazon's subsequent exercise of contractual termination rights. That response does not raise a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim.

25. China United alleges that Amazon waived the Publicity Provisions by publishing a post on Amazon's WeChat platform that referenced China United and by not expressly objecting when China United later reposted that content. *Id.*

Response: Deny. This statement mischaracterizes CUL's position and, in any event, constitutes a legal conclusion rather than a statement of fact. To the extent a response is

required, CUL's contention is not merely that Amazon failed to object when CUL republished information concerning the Parties' relationship. Rather, CUL contends that Amazon remained silent in the face of CUL's republication of information originally disclosed by Amazon itself and, when CUL later made explicit public use of the Amazon name, Amazon affirmatively praised and endorsed that conduct. RX 381-82, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3. Amazon expressed no objection to CUL's use of the Amazon name and instead thanked CUL for the October 2022 TraPac event, with Adam Baker stating that he "appreciate[d] the banner" and Becky Moore responding, "LOVE THESE PHOTOS! ... We appreciate all you do for Amazon." RX 258-59; RX 229-235. Amazon later characterized that same conduct as a material breach of the contract to manufacture grounds to terminate the contract for cause when it became advantageous to avoid the Freight Payments associated with Amazon's decision to terminate the Service Contract early. RX 382, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3; RX 265. Furthermore, Amazon employees admitted to having concerns about the name usage, but kept those concerns to itself until an opportune time to employ those concerns against CUL presented itself. RX 248-49, Baker Dep. 10:22-11:13; see also RX 295-96 Cardadeiro Dep. 65:19-66:4 (explaining that he did not complain to anyone about the banner because it was just a welcome sign showing hospitality). Further deny that Section 6 or 7 of the NDA constitutes a "publicity" provision, as that characterization is unsupported by the plain text of the agreement. Neither the term "publicity" nor any similar language appears in Sections 6 or 7 or its heading.

Respondents' Reply: Amazon disputes China United's characterization of its publications as "reposts" and Amazon's conduct as "endorsement." China United's publications went beyond simply reposting Amazon's July 4, 2022 post, and Amazon never provided the prior written consent the contract requires. Setting that aside, China United's response confirms the fact: China United's actual contention is that Amazon allegedly remained silent in the face of China United's publication of information relating to the Parties' relationship, and China United identifies no misrepresentation Amazon made to China United. Whether Amazon's silence constitutes a contractual waiver is a legal question being litigated in the Southern District of New York and does not raise a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim.

26. China United further alleges that Amazon waived the Publicity Provisions by failing to object to a welcome banner displaying Amazon's name and when an Amazon employee complimented photographs taken in front of that banner. *Id.*

Response: Deny. This statement mischaracterizes CUL's position and, in any event, constitutes a legal conclusion rather than a statement of fact. To the extent a response is required, CUL's contention is not that an Amazon employee merely complimented photographs. Rather, CUL contends that Amazon remained silent in the face of CUL's public use of the Amazon name and, when presented with photographs expressly depicting that use, affirmatively thanked and praised CUL for the conduct it now characterizes as a material breach. RX 382, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3. Amazon's Becky Moore responded to photographs depicting the October 2022 TraPac banner displaying Amazon's name by stating, "LOVE THESE PHOTOS! Thanks for sharing ... We appreciate all you do for

Amazon.” RX 230. Likewise, Adam Baker thanked CUL for its hospitality and stated that he “appreciate[d] the banner.” RX 259. CUL’s contention is that Amazon later attempted to use that same conduct, which it had previously praised and endorsed, as a basis to avoid the Early Termination Freight Payments otherwise owed as a consequence of Amazon’s decision to terminate the Service Contract early. RX 382, Complainant’s Response to Respondents’ 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3; RX 265. Further deny that Section 6 or 7 of the NDA constitutes a “publicity” provision, as that characterization is unsupported by the plain text of the agreement. Neither the term “publicity” nor any similar language appears in Sections 6 or 7 or its heading.

Respondents’ Reply: China United’s response confirms the fact: whether Amazon’s failure to object to the TraPac banner constitutes a contractual waiver is a legal question being litigated in the Southern District of New York and does not raise a genuine issue of material fact as to an essential statutory element of China United’s Shipping Act claim.

27. None of the conduct identified by China United concerns the booking, tendering, transportation, release, or payment of or for any cargo shipment. *Id.*

Response: Deny. This statement mischaracterizes both the Parties’ Service Contract and the nature of CUL’s contention and, to the extent it advances a legal proposition, constitutes a legal conclusion rather than a statement of fact. The Early Termination Freight Payments were expressly tied to Amazon’s MQC obligations and to any cargo shortfall resulting from Amazon’s early termination of the Service Contract. Attach. C to Dkt. No. 13, Work Order, Sched. 3 §§ 5.4(a), 5.4(c). CUL dedicated substantial vessel capacity to Amazon, reserved space on its vessels, and provided rates to Amazon below its published rates, in reliance on Amazon’s cargo commitments and the corresponding Early Termination Freight Payment

protections. RX 23-25, Chen Decl. ¶¶ 28, 31, 33, 35. Those protections were so important to the Parties' bargain that CUL would not have entered into the relationship absent them. *Id.* ¶ 35. CUL's contention is that Amazon subsequently sought to pretextually avoid those Early Termination Freight Payment obligations after electing to terminate the Service Contract early, notwithstanding that those payments were an integral part of the bargained-for exchange governing Amazon's tendering of cargo and CUL's provision of dedicated shipping services. *Id.* ¶¶ 35, 52-55. Amazon's characterization of this case as unrelated to cargo tendering is contradicted by the undisputed fact that the Early Termination Freight Payments and Tender Shortfall Liquidated Damages are expressly triggered by Amazon's failure to tender cargo in accordance with the Service Contract.

Respondents' Reply: China United admits that its allegations concern Amazon's conduct regarding China United's use of Amazon's name and Amazon's exercise of contractual termination rights. The MQC and liquidated damages provisions do not concern any misrepresentation as to the tender, carriage, release, or billing of any particular shipment. China United admits that none of the conduct China United identifies involves the booking, tendering, transportation, release, or payment of any cargo shipment. In addition, China United's contention that Amazon's actions were a "pretext" is irrelevant given it has abandoned its fraudulent inducement theory. *See* Dkt. No. 70, Joint Status Report.

28. None of the conduct identified by China United involves any alleged misrepresentation concerning any particular cargo or shipment. *Id.*

Response: Admit that CUL does not contend that Amazon made any misrepresentation concerning a particular cargo shipment. CUL's contention instead concerns Amazon's conduct with respect to CUL's use of the Amazon name, Amazon's subsequent invocation

of that same conduct as a basis for termination for cause, and Amazon's effort to avoid the Early Termination Freight Payments otherwise owed under the Parties' Service Contract. RX 382, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3; Ex. X, Chen Decl. ¶¶ 53-56. CUL continued performing under the Service Contract in reliance on Amazon's endorsement of CUL's name usage, while Amazon concealed its intent to invoke that same conduct as a basis to avoid tender shortfall obligations.

Respondents' Reply: China United admits it does not contend that Amazon made any misrepresentation concerning any particular cargo or shipment.

29. China United's allegations concern whether Amazon waived compliance with the Publicity Provisions and whether Amazon properly exercised its contractual termination rights. *Id.*

Response: Deny. This statement mischaracterizes CUL's contention. CUL does not merely contend that Amazon waived the Confidentiality Provisions or improperly exercised contractual termination rights. Rather, CUL contends that Amazon engaged an unjust and unfair device by publicly promoting the Amazon-CUL relationship, remaining silent in the face of CUL's republication of information originally disclosed by Amazon, affirmatively praising and endorsing CUL's use of the Amazon name, continuing to accept the benefits of lower freight rates under the Service Contract, seeking reductions to the Early Termination Freight Payments after electing to terminate for convenience, and then wielded the same conduct it had previously endorsed as both leverage and a purported basis for termination for cause as a means to avoid payment of its MQC shortfall obligations owing under the Service Contract. 381-82, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3; RX 229-235; RX 258-59; RX 265.

Further deny that Sections 6 and 7 of the NDA constitutes a “publicity” provision, as that characterization is unsupported by the plain text of the agreement. Neither the term “publicity” nor any similar language appears in Sections 6 or 7 or its heading.

Respondents’ Reply: China United’s response confirms the fact. The Publicity Provisions restrict only China United’s use of Amazon’s name; Amazon retained the unilateral right to reference China United under the Parties’ agreement. China United’s erroneous characterization of the non-reciprocal Publicity Provisions, and whether Amazon properly invoked its right to terminate based on China United’s breach, are legal questions being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to an essential statutory element of China United’s Shipping Act claim.

IV. China United’s Reparations Claim

30. China United has presented no evidence of injury or loss from the Shipping Act violation it alleges. *See* APP 53-54, Dkt. No. 80, Complainant’s July 10, 2026 Interrog. Resp., at 2-3; APP 93-95, Teo Dep. Tr. at 16:25-18:20; APP 124-126, Chen Dep. Tr. at 59:11-61:25.

Response: Deny. CUL has presented evidence of injury and loss under two alternative measures of reparations. First, CUL expressly pleaded re-rating as a remedy under Count I. The Verified Amended Complaint alleges that CUL “sustained actual injury when Respondents failed to pay Complainant’s published rates and charges or to pay Amazon’s full obligations in accordance with the Service Contract,” and expressly seeks as reparations “the difference between the published tariff rates and charges at which China United would have carried such cargo in the absence of the Service Contract, and the Service Contract rates and charges, i.e., rerating of the cargo carried.” Verified Am. Compl., Dkt. No. 11 ¶ 47. CUL supported that pleaded measure of injury with expert evidence

calculating reparations under two re-rating methodologies. RX 494, APP 162-64, St. Amand Rep. ¶ 31 & Apps. F, I. Alternatively, and in the event the Presiding Officer determines that re-rating is unavailable, the Service Contract itself forecloses Amazon's argument that CUL must separately prove out-of-pocket losses, unpaid freight, spoiled cargo, additional operational expenses, or other forms of actual injury. The Verified Amended Complaint seeks "reparations for the unlawful conduct described above, along with interest and Complainant's attorney's fees and costs as described in 46 U.S.C. § 41305." Verified Am. Compl., Dkt No. 11, Prayer for Relief. The Parties expressly agreed under the Service Contract that, if Amazon failed to satisfy its MQC obligations, CUL's resulting harm would be measured through the Tender Shortfall Liquidated Damages provisions. Specifically, the Work Order provides that, if Amazon fails to tender sufficient FEUs to meet 80% of the MQC, CUL may recover Tender Shortfall Liquidated Damages calculated at \$2,000 for each FEU below that threshold. See Work Order, Attach. C to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (Mar. 26, 2025), Sched. 3 § 5.1(b). The Parties further agreed that CUL's harm resulting from Amazon's failure to satisfy the MQC "would be impossible or very difficult to accurately estimate" and that the Tender Shortfall Liquidated Damages constitute "a reasonable estimate of the anticipated or actual harm" arising from that failure. See *id.*, Sched. 3 § 5.1(e). The Work Order makes those damages Amazon's "sole liability and entire obligation" and CUL's "exclusive remedy" for Amazon's failure to satisfy the MQC. See *id.*, Sched. 3 § 5.1(d). Here, the undisputed facts show that Amazon ceased tendering cargo toward its MQC in June 2023 and tendered no cargo thereafter through the expiration of the Service Contract. RX 476, Teo Opp'n Decl.

¶ 7. Applying the contractual damages formula to Amazon’s tender shortfall yields damages of \$47,616,000. RX 476-77, Teo Opp’n Decl. ¶¶ 8-15.

Respondents’ Reply: China United’s response confirms the fact: a re-rating remedy is not evidence of actual injury. It is, as stated, a remedy, and one that is in any event foreclosed by the Presiding Officer’s June 6 Order holding it inapplicable in this case. China United identifies no out-of-pocket loss, unpaid freight, spoiled cargo, additional operational expense, or other concrete injury. China United’s “alternative” measure is a contractual liquidated damages remedy, not an “actual injury” cognizable under 46 U.S.C. § 41305. China United has not sought to recover liquidated damages in this proceeding and, because liquidated damages are a contractual remedy, cannot recover them under 46 U.S.C. § 40502(f). There is no genuine issue of material fact, and China United has made no showing of actual injury.

31. China United asserts a reparations claim based on a tariff re-rating theory. *See* APP 155-160, St. Amand Expert Report at ¶¶ 17-31; APP 193-194, McCown Expert Rebuttal Report at ¶¶ 91-96; APP 115-118, Teo Dep. Tr. at 123:5-126:18.

Response: Admit.

Respondents’ Reply: No reply necessary.

32. China United had several “gaps” in its published FMC tariffs: one gap between May 20, 2022 when cargo started moving under the contract and August 9, 2022, and five gaps between the expiration of an applicable published tariff and the effective date of the next applicable published tariff. *See* APP 158, St. Amand Expert Report at ¶¶ 24-25, Figure 3.

Response: Deny. Kardian explained that because the tariffs contained no expiration dates, there were no “gaps” in the tariff application. RX 318, Kardian Rep. at 27. Kardian’s

testimony made clear that, to the extent there were any apparent gaps, those are filled by the unexpired Cargo NOS tariff. RX 321, Kardian Dep. 26:18-27:20.

Respondents' Reply: The existence of the gap periods is not disputed: China United's expert St. Amand's own Figure 3 (APP 158) identifies each interim period during which no tariff was in effect for the Yantian-LA/Long Beach port pair. China United expert Kardian's view that those gaps should be backfilled by applying a nonrate rule that states on its face it does not apply by default is erroneous as a matter of law and does not raise a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim.

33. China United presented two alternative methods of calculating alleged reparations using a "placeholder" rule to address the "gaps." *Id.*

Response: Deny. Kardian explained that because the tariffs contained no expiration dates, there were no "gaps" in the tariff application. RX 318, Kardian Rep. at 27. Kardian's testimony made clear that, to the extent there were any apparent gaps, those are filled by the unexpired Cargo NOS tariff. RX 321, Kardian Dep. 26:18-27:20. Deny Amazon's characterization of the Cargo NOS tariff as a "placeholder" rate.

Respondents' Reply: China United's expert St. Amand stated in his report that he presented two alternative reparations calculations using the nonrate weight-volume Cargo NOS rule to address the gap periods when China United had not published any container rate tariff for the relevant port pair. APP 158-160, St. Amand Expert Report ¶¶ 25-26. He also referred to the nonrate rule as a "filler." APP 170, St. Amand Dep. Tr. at 19:16-19. China United expert Kardian's view that the gaps should be backfilled by applying a nonrate rule that states on its face it does not apply by default is erroneous as a matter of

law and does not raise a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim.

34. Under the first approach China United addressed the gap period between May 20, 2022 and August 9, 2022 by applying a “placeholder” rate rule that set out a non-rate weight-volume calculation equating to approximately \$35,000 per FEU. For the five remaining gap periods it used the rate of the previously expired tariff until the next tariff became effective. *See* APP 152, 158-160, 162-163, St. Amand Expert Report at ¶¶ 6, 25-26, 31, App. F; APP 170-171, 183-184, Transcript of David St. Amand Deposition (“St. Amand Dep. Tr.”) at 19:15-20:02, 156:8-157:11.

Response: Deny Amazon's characterization of the tariff as a “placeholder” rate, but otherwise admit.

Respondents' Reply: Given that the word “placeholder” is nomenclature and that the similar word “filler” was adopted by China United's expert St. Amand, this fact is effectively admitted and there is no genuine dispute of material fact on the point. APP 170, St. Amand Dep. Tr. at 19:16-19.

35. China United's first re-rating approach yielded a reparations claim of \$157,413,949.00. *Id.* All of the reparations were attributable to the first gap period when the “placeholder” rate rule was used; for the remaining periods the contract rates were above the tariff rates used and the re-rating yielded negative reparations. *See* APP 176, 177, St. Amand Dep. Tr. at 99:04-99:08, 140:04-140:22; APP 201-204, McCown Dep. Tr. at 12:24-15:12; APP 162-163, St. Amand Expert Report, App. F; APP 194-195, McCown Expert Rebuttal Report at ¶¶ 94-95, 101.

Response: Admit that CUL's expert, David St. Amand, calculated net reparations of \$157,413,949 under the methodology using the most recently expired tariff during the identified interim periods. RX 493-494, App. 162-63, St. Amand Rep. ¶¶ 28-31 & App. F. Deny the remainder. Deny Amazon's characterization of the tariff as a "placeholder" rate. Amazon's assertion that the re-rating yielded "negative reparations" mischaracterizes St. Amand's analysis by isolating selected periods rather than addressing the completed re-rating. Mr. St. Amand calculated the tariff charges applicable to all cargo Amazon actually shipped under the Service Contract and compared those charges to the amounts Amazon paid. RX 488-494, App. 162-63 St. Amand Rep. ¶¶ 18-31 & App. F. Based on that analysis, Amazon would have owed \$293,747,229 at tariff rates, compared to \$136,333,280 actually paid, resulting in net reparations of \$157,413,949. RX 493-494, App. 162-63, St. Amand Rep. ¶¶ 28-31 & App. F. The fact that Service Contract rates exceeded tariff rates during certain periods does not convert the completed re-rating into a negative calculation or undermine St. Amand's ultimate reparations figure. Moreover, Amazon's expert, John McCown, admitted that he never performed a re-rating calculation. When asked for his own re-rating calculation, Mr. McCown testified: "I have not done that exercise. Again, that wasn't something that I was tasked with doing. But I believe it would come out to be a negative number." RX 335, McCown Dep. 26:17-21. Thus, Amazon's purported "negative reparations" theory is not based on any re-rating that Mr. McCown actually performed.

Respondents' Reply: China United admits that its first approach yielded a reparations claim of \$157,413,949. China United does not dispute that, for every period when China United had not published any container rate tariff for the relevant port pair, which its expert

St. Amand referred to as a “gap” period, APP 152, 158-159, St. Amand Dep. at 2:6, 12:25, contract rates exceeded the applicable tariff rate. St. Amand’s own Appendix F reflects that fact and he confirmed it at deposition. APP 162, St. Amand Report App. F; APP 176, St. Amand Dep. Tr. at 99:4-8. Amazon’s expert McCown likewise confirmed that China United’s reparations claim was entirely the result of applying the placeholder nonrate rule and not container rate tariffs that applied to the relevant port pair. APP 203-204, McCown Dep. Tr. at 14:21-15:20. There is no genuine dispute of material fact as to any essential statutory element of China United’s Shipping Act claim.

36. China United’s “alternative” approach addressed all of the “gaps” in its tariffs by applying the “placeholder” rate rule with the non-rate weight-volume calculation that equated to approximately \$35,000 per FEU. *See* APP 152, 159, 160, St. Amand Expert Report at ¶¶ 6, 26, 31, App. I; APP 170-172, St. Amand Dep. Tr. at 19:18-20:02, 20:20-21:10.

Response: Admit that Mr. St. Amand’s alternative re-rating methodology applied the unexpired July 1, 2021 tariff to the periods identified in his report and produced the resulting re-rating calculation. RX 492-94, St. Amand Rep. ¶¶ 25-26, 31. Deny Amazon’s characterization of the July 1, 2021 tariff as a “placeholder” rate. In any event, the characterization of the tariff as a “placeholder” has no bearing on the propriety of re-rating. CUL’s expert, Gary Kardian, testified that whether a tariff is characterized as a placeholder is irrelevant to the re-rating analysis and that, even if the tariff were characterized as a placeholder, that fact “would not bar re-rating.” RX 330, Kardian Dep. 214:15-19.

Respondents’ Reply: China United admits the methodology of its alternative approach as described. Its objection to the “placeholder” nomenclature is contradicted by its own expert witness, who similarly referred to the rule as a “filler,” and is not material in any event.

APP 170, St. Amand Dep. Tr. at 19:16-19. China United expert Kardian's view that the gaps should be backfilled by applying a nonrate rule that states on its face it does not apply by default is erroneous as a matter of law and does not raise a genuine issue of material fact as to an essential statutory element of China United's Shipping Act claim.

37. That calculation yielded a reparations claim of \$384.4 million. Again, all of the reparations were attributable to the use of the "placeholder" rate rule for the "gap" periods, and for the remaining periods the contract rates were above the tariff rates used and the re-rating yielded negative reparations. *See* APP 160, 164, St. Amand Expert Report at ¶ 31, App. I; APP 179-182, 185-186, St. Amand Dep. Tr. 146:01-149:03, 158:17-159:14; APP 201-204, McCown Dep. Tr. at 12:24-15:12; APP 195-196, McCown Expert Rebuttal Report at ¶¶ 101, 116.

Response: Admit that Mr. St. Amand's alternative re-rating methodology yielded net reparations of \$384,412,592. RX 493-494, St. Amand Rep. ¶¶ 26, 31. Deny the remainder. Deny Amazon's characterization of the tariff as a "placeholder" rate. Amazon's assertion that the alternative methodology would have yielded negative reparations during certain periods selectively isolates portions of the analysis rather than addressing the completed re-rating calculation. St. Amand's alternative methodology applied the unexpired July 1, 2021 tariff to the identified periods and calculated total tariff charges of \$520,745,872, compared to \$136,333,280 paid by Amazon, resulting in net reparations of \$384,412,592. RX 493-494, St. Amand Rep. ¶¶ 26, 31. Moreover, Amazon's expert, John McCown, did not perform a re-rating calculation of his own. When asked for his own re-rating calculation, Mr. McCown testified: "I have not done that exercise. Again, that wasn't something that I was tasked with doing. But I believe it would come out to be a negative

number.” RX 335, McCown Dep. 26:17-21. Thus, to the extent Amazon relies on a purported “negative” re-rating theory, that assertion is not based on any re-rating analysis performed by Mr. McCown.

Respondents’ Reply: China United admits that its alternative approach yielded a reparations claim of approximately \$384.4 million and does not dispute that this proposed recovery depends on applying the Cargo NOS nonrate rule—a rate China United’s own expert admitted no shipper has ever actually paid—during the identified gap periods. APP 177, St. Amand Dep. 140:13–16. Amazon’s expert McCown likewise confirmed that China United’s reparations claim was entirely the result of applying the placeholder nonrate rule and not container rate tariffs that applied to the relevant port pair. APP 203-204, McCown Dep. Tr. at 14:21-15:20. There is no genuine dispute of material fact as to any essential statutory element of China United’s Shipping Act claim.

38. The non-rate weight-volume rule included the notation “Rate Related: N” and “Apply by Default: N.” *See* APP 88, CUL003430. This means, as it plainly states, that the rule was not rate-related and did not apply by default. *See* APP 208-210, McCown Dep. Tr. at 76:01-78:3.

Response: Deny. Amazon’s interpretation of the notations “Rate Related: N” and “Apply by Default: N” is contradicted by the testimony concerning the operation and applicability of CUL’s Cargo NOS tariff. CUL’s expert, Gary Kardian, testified that, absent another applicable rate, cargo defaults to the Cargo NOS rate and that the “gap” periods identified by Amazon should be covered by the unexpired Cargo NOS rate of \$500 per weight/measure ton. RX 321-22, Kardian Dep. Tr. 26:18-27:4, 27:15-20. Mr. Kardian further testified that “the tariff to be applied to any gap should be the original tariff,” that

“there really are no gaps because the originally filed U.S. tariffs by CUL contain no expiration dates,” and that “you always have a rate because you have a cargo NOS rate in place.” RX 327, Kardian Dep. Tr. 129:5-10, 130:1-21, 131:1-3. By contrast, Amazon’s expert, John McCown, admitted that he did not conduct a re-rating in his report. RX 333, McCown Dep. 9:23-24. Mr. McCown further admitted that he was unaware of the FMC ever identifying any issue with CUL’s \$500 weight/measure tariff. RX 338, McCown Dep. 29:12-17. Indeed, when asked for the result of his own proposed re-rating methodology, McCown acknowledged: “I have not done that exercise. Again, that wasn’t something that I was tasked with doing. But I believe it would come out to be a negative number.” RX 335, McCown Dep. Tr. 26:17-21. Amazon’s interpretation of the administrative notations therefore does not establish that the unexpired Cargo NOS tariff was unavailable for re-rating and rests on speculation from an expert who admittedly never performed the analysis he proposes.

Respondents’ Reply: China United does not dispute that its own published cargo NOS nonrate rule contains the notations “Rate Related: N” and “Apply by Default: N.” Amazon’s expert testified, based on inquiry with the tariff publisher, that “N” meant “no” and that the rule was thus neither rate-related nor applicable by default. APP 203-204, McCown Dep. Tr. at 14:21-15:20. Neither of China United’s experts claimed to know what the “N” meant. There is no evidence in the record other than that it means “no.” SUPP. APP 20, Kardian Dep. Tr. at 175:11-21; SUPP. APP 23, St. Amand Dep. Tr. at 118:16-18. There is no genuine dispute of material fact as to any essential statutory element of China United’s Shipping Act claim.

39. China United’s expert confirmed that the regulation its re-rating theory is based on, 46 C.F.R. § 530.10, is inapplicable to this proceeding. *See* APP 140-142, 143-149, Kardian Dep. Tr. at 117:06-119:06; 120:11-126:04.

Response: Deny. Amazon mischaracterizes Gary Kardian’s testimony. Mr. Kardian did not testify that 46 C.F.R. § 530.10 was ruled inapplicable to this proceeding. Instead, he distinguished the dismissed count from the surviving Count I and testified that the re-rating issue remained for consideration under Count I. Ex. X, Kardian Dep. Tr. 73:11-75:17. He further explained that his opinion asked the Presiding Officer to determine whether re-rating applies if Amazon failed to satisfy the MQC or pay the contractually contemplated Early Termination Freight Payments. RX 325-326, Kardian Dep. Tr. 112:8-18, 115:16-116:15.

Respondents’ Reply: The Presiding Officer’s June 6, 2025 Order held that 46 C.F.R. § 530.10 is inapplicable because the parties’ contract expressly addressed termination. China United’s expert Kardian’s testimony confirms the same conclusion: he conceded that re-rating under section 530.10 requires a cancellation “unanticipated by the service contract,” and that this Work Order expressly contemplated both termination for convenience with liquidated damages and termination for cause without them. APP 140-149, Kardian Dep. 117:6–119:6; 120:11–126:04. The admission confirms the Presiding Officer’s conclusion, which is a matter of law in any event.

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Complainant’s “Response” to Respondents’ Statement of Facts includes over 30 new “facts” offered by Complainant in Section V (paragraphs 40 through 71). These “facts”

do not address the points on which Respondents based their motion and thus are improper and unnecessary. China United has not filed a motion for summary disposition and there is no basis for it to file its own statement of material facts. Moreover, Section V consists almost entirely of argumentative characterizations and legal conclusions rather than additional material facts and makes no effort to identify material facts as to which there is no genuine issue. Indeed, many of these paragraphs mischaracterize the very documents Complainant cites in support of them. The documents speak for themselves and should be given controlling weight; Complainant's characterizations of them are of no weight, particularly in a statement of facts.

Respondents note further that these paragraphs repeat irrelevant and improper argumentation China United presented in response to Respondents' statement of material facts in Paragraphs 1-39 above. Indeed, China United admitted almost all the facts set out in Paragraphs 1-39 but then added its own arguments and characterizations, which Respondents have replied to above. While Section V is improper and duplicative and should be disregarded, Respondents nevertheless provide responses to China United's proposed "facts" below.

V. Response to Complainant's Additional Material Facts

40. Under NDA § 1, information that Amazon has publicly disclosed is not "Confidential Information." Attach. B to Dkt. No. 13 § 1.

Respondents' Response: Admit that information Amazon publicly disclosed is not "Confidential Information" under NDA § 1. The contract issues, including whether China United was allowed to use Amazon's name without consent, are being litigated in the

Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

41. On July 4, 2022, Amazon published a WeChat post promoting CUL's transpacific service from China to the U.S. West Coast and identifying CUL as Amazon's service provider. RX 26-27, Chen Decl. ¶ 40; RX 70-91.

Respondents' Response: Admit that Amazon published a July 4, 2022 WeChat post that referenced China United as a service provider, which the Contract authorized Amazon to do without China United's prior permission. The contract issues, including whether China United was allowed to use Amazon's name without consent, are being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

42. N/A.²

43. Amazon subsequently published similar content on its official WeChat account on August 9, 2022, and December 8, 2022, expressly identifying CUL as its service provider. RX 27, Chen Decl. ¶ 43; RX 92-129.

Respondents' Response: Admit that Amazon published WeChat posts on August 9, 2022 and December 8, 2022 that referenced China United as a service provider, which the Contract authorized Amazon to do without China United's prior permission. The contract issues, including whether China United was allowed to use Amazon's name without consent, are being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

² China United did not add a fact number 42.

44. Through its July 4, August 9, and December 8, 2022 WeChat posts, Amazon publicly disclosed: (a) the existence of the Amazon-CUL contractual relationship; (b) CUL's role as Amazon's transpacific route capacity provider; (c) performance metrics, including delivery-time stability and the on-schedule rate; (d) capacity information concerning large-scale seller restocking demand; and (e) information concerning service continuity across different seasons of demand. RX 70-129.

Respondents' Response: Admit that Amazon publicly disclosed certain information concerning the Amazon-CUL relationship in its July 4, August 9, and December 8, 2022 WeChat posts, which the Contract authorized Amazon to do without CUL's prior permission. The contract issues, including whether China United was allowed to use Amazon's name without consent, are being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

45. CUL's August 9, 2022 WeChat, LinkedIn, and website publications referenced the existence of the Amazon-CUL relationship and evaluative content Amazon had already published in its July 4, 2022 WeChat post, including the "Amazon Global Logistics Team" comments and 97.1% on-schedule performance data. RX 70-91; RX 130-189; RX 190-215; RX 388-400.

Respondents' Response: Deny China United's characterization that its August 9, 2022 publications merely referenced content Amazon had already published. Amazon disputes that China United's publications tracked the content, scope, or presentation of Amazon's July 4, 2022 WeChat post. Admit only that China United's August 9, 2022 publications referenced the Amazon-China United relationship. The contract issues, including whether

China United was allowed to use Amazon's name without consent, are being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

46. CUL's November 22, 2022 WeChat post republished content from Amazon's July 4, 2022 WeChat post, including Amazon's public evaluation of CUL's service. RX 70-91; RX 401-434.

Respondents' Response: Deny China United's characterization that its November 22, 2022 WeChat post "republished" Amazon's content or Amazon's public evaluation of China United's service. Admit only that China United's November 22, 2022 WeChat post referenced Amazon and the Amazon-China United relationship. The Contract authorized Amazon to make the July 4 post without China United's prior permission. The contract issues, including whether China United was allowed to use Amazon's name without consent, are being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

47. CUL's December 5 and December 8, 2022 WeChat posts referenced the Amazon-CUL relationship and the same categories of stability, capacity, and seasonal-service information that Amazon publicly disclosed in its December 8, 2022 WeChat post. RX 112-129; RX 435-450.

Respondents' Response: Deny China United's characterization that its December 2022 posts merely referenced the same categories of information Amazon had publicly disclosed. Amazon disputes that China United's posts tracked the content, scope, or presentation of Amazon's December 8, 2022 (or any other) WeChat post. Admit only that

China United's December 2022 WeChat posts referenced the Amazon-China United relationship. The contract issues, including whether China United was allowed to use Amazon's name without consent, are being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

48. CUL's March 16, 2023 WeChat post and website article referenced the same categories of relationship, performance, capacity, and seasonal-service information that Amazon had publicly disclosed in its July 4, August 9, and December 8, 2022 WeChat posts. RX 70-129, RX 451-472.

Respondents' Response: Deny China United's characterization that its March 2023 publications referenced only the same categories of information Amazon had publicly disclosed. Amazon disputes that China United's publications tracked the content, scope, or presentation of Amazon's July 4, August 9, or December 8, 2022 WeChat posts. Admit only that China United's March 2023 publications referenced the Amazon-China United relationship. The contract issues, including whether China United was allowed to use Amazon's name without consent, are being litigated in the Southern District of New York and do not raise a genuine issue of material fact as to any essential statutory element of China United's Shipping Act claim.

49. Amazon was aware of CUL's public presence and WeChat activity long before Amazon's claimed April 18, 2023 discovery of CUL's WeChat posts. Amazon employees followed CUL's WeChat account from the outset of the parties' relationship beginning in April 2022. RX 238, Liao Dep. 20:9–17; RX 243, Wu Dep. 16:20–25.

Respondents' Response: Deny that Amazon's claimed April 18, 2023 discovery is enuinely disputed. The cited testimony shows only that certain Amazon employees followed CUL's WeChat account, not that Amazon knew of the specific challenged posts before April 18, 2023. Regardless, the timing of Amazon's discovery is immaterial to whether China United can establish a Shipping Act violation, and this assertion does not create a genuine dispute of material fact as to any essential statutory element of section 41102(a).

50. CUL's WeChat posts could be located through keyword searches on Google or WeChat in either English or Chinese. RX 244, Wu Dep. 18:20-19:1.

Respondents' Response: Admit that keyword searches could be used to find WeChat posts. This fact is immaterial to whether China United can establish a Shipping Act violation.

51. On October 24, 2022, seven senior Amazon executives visited CUL at the TraPac terminal in Los Angeles. During that visit, CUL displayed a large banner on the dockside hull of its vessel stating, "CULINES and TRAPAC PROUDLY WELCOME AMAZON TEAM ABOARD." RX 63-64, Liu Decl. ¶¶ 47-49.

Respondents' Response: Admit that Amazon representatives visited China United at the TraPac terminal on October 24, 2022 and that a banner bearing Amazon's name was displayed during that visit. This fact is immaterial to this case and does not establish fraud, concealment, or any unfair or unjust device under section 41102(a). It does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

52. The banner bearing Amazon's name was visible to stevedores, other vessel crews, and members of the public traveling on the adjacent street. RX 64, Liu Decl. ¶ 49.

Respondents' Response: Amazon does not have sufficient information to admit or deny whether the banner was visible to stevedores, other vessel crews, or members of the public traveling on the adjacent street. This fact is immaterial to this case and does not establish fraud, concealment, or any unfair or unjust device under section 41102(a). It does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

53. CUL took photographs of Amazon executives positioned beneath the banner, and none of the Amazon representatives present objected to CUL's public use of Amazon's name. RX 64, Liu Decl. ¶ 50; RX 229-235.

Respondents' Response: Admit that photographs were taken of Amazon employees beneath the banner. This fact is immaterial to this case and does not establish fraud, concealment, or any unfair or unjust device under section 41102(a). It does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

54. After the TraPac event, CUL sent photographs depicting Amazon executives beneath the banner directly to Amazon executives Adam Baker and Becky Moore. Moore responded, "LOVE THESE PHOTOS! Thanks for sharing — I was told you were a very great tour guide. We appreciate all you do for Amazon." Baker responded, "Thank you very much on behalf of my whole team for your hospitality . . . appreciate the banner." RX 64, Liu Decl. ¶ 52; RX 230; RX 259.

Respondents' Response: Admit that CUL sent photographs from the TraPac event to Amazon employees and that Amazon employees sent the quoted responses. Those statements are immaterial to this case and do not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and do not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

55. Baker later testified that he found the TraPac banner "concerning," but he did not communicate that concern to CUL. RX 248-49, Baker Dep. 10:22-11:13.

Respondents' Response: Admit that Adam Baker testified that he found the TraPac banner concerning. Adam Baker further testified that he shared that concern with his team and had "almost no direct communication with China United." Baker Dep. 11:4-8. Baker's internal impression that he did not communicate to China United is not concealment of a material fact under section 41102(a). It does not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

56. Amazon continued performing under the Work Order for nearly eight months after the TraPac event without raising any objection to CUL's use of Amazon's name on the banner or in any other context. *See* RX 65, Liu Decl. ¶ 53.

Respondents' Response: Admit that Amazon continued performing under the Work Order after the TraPac event. Deny that Amazon did not raise any objection to China United's use of Amazon's name in any other context. This fact is immaterial and does not create a genuine dispute of material fact as to any essential element of China United's Shipping Act claim.

57. On February 27, 2023, before Amazon’s claimed April 18, 2023 discovery of CUL’s WeChat posts, Amazon employee Michael Doblinger wrote internally to David Cardadeiro that Amazon should send a convenience termination notice and then “see if/how CUL execute the sailings for a few weeks.” Doblinger further stated: “If CUL blanks us for a few weeks, we will have an opportunity to term for cause. . . . We don’t have cause today.” RX 304.

Respondents’ Response: Admit that Michael Doblinger sent the quoted messages on February 27, 2023. In the same chat, David Cardadeiro rejected Doblinger’s suggestion in real time: “There won’t be any other vehicle to term if that’s what you are angling for”; “We have covered this. They have only blanked twice, ever”; “We are not going to get a term for cause”; and “Termining gives us the best economics and that was covered and reviewed.” SUPP. APP 25, AMZ-00000881. Amazon then did the opposite of what Doblinger proposed—it issued a notice of termination for convenience on April 1, 2023. This statement does not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and does not create a genuine dispute of material fact as to any essential element of China United’s Shipping Act claim.

58. Amazon repeatedly acknowledged that the Early Termination Freight Payments were owed and reiterated that position during the May 9, 2023 meeting with CUL in Shanghai. RX 66-68, Liu Decl. ¶¶ 59, 66; RX 306-09; RX 481-485.

Respondents’ Response: Deny to the extent China United asserts that Amazon admitted any unconditional payment obligation. Amazon’s communications concerning potential liquidated damages concern the parties’ contractual rights and obligations, including the legal effect of Amazon’s later termination for cause, which is being litigated in the Southern

District of New York. They do not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and do not create a genuine dispute of material fact as to any essential element of China United's Shipping Act claim.

59. During the May 9, 2023 Shanghai meeting, David Cardadeiro told CUL that Amazon appreciated its partnership over the preceding eleven months and that CUL had been an "incredible partner." Cardadeiro further stated that Amazon's termination for convenience had nothing to do with CUL's performance or the manner in which CUL had conducted itself as Amazon's partner. RX 30, Chen Decl. ¶ 53; RX 281-82, Teo Decl. ¶ 17.

Respondents' Response: Admit that David Cardadeiro testified that he did not know whether he relayed the "incredible partner" talking point verbatim but was "sure" he told China United that Amazon "appreciated their support over the past 11 months." SUPP. APP 6, Cardadeiro Dep. 112:4–20. Cardadeiro further testified that he was "sure" he told China United that ending the contract was "definitely an economical decision" and "a prudent business decision." *Id.* Those statements do not alter the parties' contractual rights or obligations, establish waiver, fraud, concealment, or any unfair or unjust device under section 41102(a), or create a genuine dispute of material fact as to any essential element of China United's Shipping Act claim.

60. During the May 9, 2023 Shanghai meeting, Cardadeiro asked CUL to consider reducing the \$31.56 million payment due under the Work Order, and CUL declined to agree to a reduction. RX 30-31, Chen Decl. ¶¶ 53-54; RX 281-82, Teo Decl. ¶ 17.

Respondents' Response: Deny to the extent China United asserts that David Cardadeiro asked China United at the May 9, 2023 Shanghai meeting to reduce a specific \$31.56 million payment. Cardadeiro testified that he was "very confident" he did not mention a

specific number at that meeting. SUPP. APP 7, Cardadeiro Dep. 113:10–18. In any event, this testimony does not create a genuine dispute of material fact as to any essential statutory element of China United’s Shipping Act claim.

61. Cardadeiro did not disclose during the May 9, 2023 Shanghai meeting that Amazon was investigating CUL for an alleged breach of the MTA or NDA or that Amazon was contemplating termination for cause. RX 30, Chen Decl. ¶ 53; RX 281-82, Teo Decl. ¶ 17.

Respondents’ Response: Admit that David Cardadeiro testified that Amazon had not “reached any determination yet at that time” and was conducting “proper due diligence.” SUPP. APP 3-4, Cardadeiro Dep. 109:19–110:15. Amazon had no legal or contractual duty to disclose to China United the status of its investigation into China United’s own contractual breach, and non-disclosure of an internal enforcement analysis is not concealment of a material fact under section 41102(a). This testimony does not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and does not create a genuine dispute of material fact as to any essential statutory element of China United’s Shipping Act claim.

62. On May 10, 2023, one day after the Shanghai meeting, Amazon internally considered whether to “lean in to the disclosure point to create leverage” in negotiating a reduction of its payment obligation to CUL. RX 299.

Respondents’ Response: Admit that the quoted internal email was sent on May 10, 2023. A party’s internal deliberations about how to enforce its contractual rights are not fraud, and considering how to invoke a known breach as leverage in ongoing contract negotiations is not deception “inducing a carrier to carry or release cargo.” *See Samsung Elecs. Am., Inc. v. OOCL*, Dkt. No. 24-17, 2025 WL 2207363, at *18 (FMC July 30, 2025). This

statement does not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

63. Cardadeiro wrote internally that CUL was "definitely counting the \$31mm," and Klosky responded that CUL "need[ed] that cash to stay afloat." *Id.*

Respondents' Response: Admit that David Cardadeiro used the quoted language and testified that he meant China United was counting the maximum termination-for-convenience exposure, which Amazon estimated at approximately \$31 million. SUPP. APP 8-9, Cardadeiro Dep. 122:11–123:20. This statement does not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

64. On April 26, 2023, as part of its ramp-down plan, Amazon required CUL to make space available for 160 FEU per week during May and June 2023 through the end of Week 26. RX 68 X, Liu Decl. ¶ 65; RX 29, Chen Decl. ¶ 51.

Respondents' Response: Admit that Amazon contemplated continued volume during the ramp-down period. This fact concerns performance under the parties' contract and does not establish fraud, concealment, or any unfair or unjust device under section 41102(a). It does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

65. CUL kept its service available and reliable to Amazon throughout the ramp-down period. RX 31, Chen Decl. ¶ 55.

Respondents' Response: Admit China United continued to perform during the ramp-down period. This fact concerns contractual performance and does not establish fraud,

concealment, or any unfair or unjust device under section 41102(a). It does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

66. David Cardadeiro testified that Amazon's for-cause termination letter "probably" would not have been issued if CUL had agreed to reduce the amount of the Early Termination Freight Payments. RX 297, Cardadeiro Dep. 126:6-14.

Respondents' Response: Admit David Cardadeiro gave the quoted testimony and also testified that the question was "completely speculative" and that he did not know whether a reduction would have changed anything. SUPP. APP 10-11, Cardadeiro Dep. 126:6–127:1. A party's willingness to forbear from enforcing a contractual right in exchange for a business resolution is negotiation, not fraud. That testimony does not establish fraud, concealment, or any unfair or unjust device under section 41102(a), and does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

67. Connor Klosky testified that, if CUL had agreed to "reasonable rates," there would not have been a need to terminate CUL. RX 257, Klosky Dep. 184:6-15.

Respondents' Response: Admit that Connor Klosky gave the cited testimony. The testimony concerns Amazon's commercial relationship with China United and potential future business, not any fraud, concealment, or unfair or unjust device under section 41102(a). It does not create a genuine dispute of material fact as to any essential element of China United's Shipping Act claim.

68. Amazon issued its Notice of Termination for Cause on June 7, 2023, after CUL declined Amazon's request to reduce the payment due under the Work Order. RX 30-32, Chen Decl. ¶¶ 53-54, 56.

Respondents' Response: Admit that Amazon issued its Notice of Termination for Cause on June 7, 2023. The validity and effect of the termination notice are contractual issues being litigated in the Southern District of New York and do not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

69. During the same period in which CUL reduced its freight rates at Amazon's request, Amazon thanked CUL for its public use of Amazon's name at the TraPac terminal. RX 63-64, Liu Decl. ¶¶ 46, 52; RX 229-235; RX 258-63.

Respondents' Response: Admit that Amazon employees thanked China United after the TraPac event. Deny that those communications constitute written authorization, waiver, fraud, concealment, or any unfair or unjust device under section 41102(a). This fact is immaterial and does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

70. Amazon later invoked CUL's use of the Amazon name after determining that CUL's renegotiated rates were "no longer competitive." RX 65-66, Liu Decl. ¶¶ 55, 58; RX 310-311.

Respondents' Response: Deny China United's characterization that Amazon invoked China United's use of Amazon's name because China United's rates were no longer competitive. The cited assertion concerns Amazon's commercial assessment of rates and its separate contractual termination rights, not fraud, concealment, or any unfair or unjust

device under section 41102(a). It does not create a genuine dispute of material fact as to any essential element of China United's Shipping Act claim.

71. CUL's witnesses each testified that CUL was shocked by Amazon's decision to terminate the Work Order for cause based on CUL's alleged breach of the Service Contract's confidentiality provisions. RX 68, Liu Decl. ¶ 67; RX 31-32, Chen Decl. ¶ 56; RX 283, Teo Decl. ¶ 22.

Respondents' Response: Amazon is not aware of whether China United's witnesses were "shocked" by Amazon's termination-for-cause notice. Any asserted subjective reaction does not establish fraud, concealment, waiver, or any unfair or unjust device under section 41102(a), and does not create a genuine dispute of material fact as to any essential statutory element of China United's Shipping Act claim.

Respectfully submitted,

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September 9, 2026

CERTIFICATE OF SERVICE

I certify that on this 9th day of September, 2026 the aforesaid Reply Statement of Material Facts to Which There Is No Genuine Dispute has been filed electronically with the Secretary, with a copy to judges@fmc.gov and to the following parties of record, as provided by the Initial Order in this proceeding.

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